

may include the identity of the carrier and the nature and limits of the coverage. A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, but not as to the nature and substance of that dispute. Information concerning the insurance agreement is not by reason of disclosure admissible in evidence at trial.

CCP § 2017.210

Request for Production, Set One, No. 5 seeks any policy document identified in Form Interrogatory 4.1. Rather than providing the information requested, Defendant took the position that because an insurance carrier denied coverage for the incident, that the information regarding that policy was not subject to discovery. The basis for this argument appears to be that because coverage was denied, the "may be liable" language excludes the policy. This position ignores that CCP § 2017.010 includes "A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, but not as to the nature and substance of that dispute." While the policy itself has not been disclosed, in order to obtain a denial, Defendant must have submitted this incident to the insurance company. The insurance company denying coverage does not mean that Plaintiff no longer has the right to discovery as to the policy. Defendant's position is unreasonable and not supported by statute or case law. Defendant should have provided the requested information without any objection as this is basic and standard information that is so commonplace that it is listed in the general Form Interrogatories. The motions are **GRANTED**.

Sanctions. Plaintiffs request sanctions in the amount of \$1,357.20 total between the two motions. This is based on 5.5 hours at \$225 per hour and the two \$60 filing fees. The Court finds that the hours expended and hourly rate requested are reasonable. The Court further finds that Defendant did not act with substantial justification. Although Defendant eventually offered to provide the policy, Defendant did not do so and refused to amend their discovery responses. Sanctions are awarded to Plaintiff as requested.

The motions are both **GRANTED**. Complete responses to Form Interrogatories, Set One, No. 4.1 and Request for Production, Set One, No. 5 are ordered to be provided within fifteen days of today's hearing. Sanctions are awarded to Plaintiff in the amount of \$1,357.20 (\$678.60 per motion). Plaintiff provided proposed Orders that will be modified to reflect the Court's ruling.

WRIGHT, ET AL. VS. OROS BORJON, ET AL.

CASE NUMBER: 25CV-0208213

Tentative Ruling on Motion for Summary Judgment: Plaintiff Patricia L. Wright, Trustee of the Patricia L. Wright Trust DTD July 8, 2020 and Plaintiff Deborah Lee Hammerich, Trustee of the 2005 Amendment and Restatement of the 2000 Deborah Lee Hammerich Revocable Trust DTD September 28, 2020 move for summary judgment on their Complaint for Partition filed on July 16, 2025. Defendants Jose Fernando Oros Borjon and Ivonne Oros Borjon, Trustees of the Borjon Family Trust DTD January 19, 2019 filed a Limited Response to the motion.

As a preliminary matter, the Court notes that Defendants, who are proceeding in pro per, are named as Trustees of the Borjon Family Trust DTD January 19, 2019. Only those actively licensed with the State Bar may practice law in California. B&P Code § 6125. Those who practice law without a license can be both criminally prosecuted and held in contempt. B&P Code §§ 6126 and 6126.3. The privilege of practicing law is confined to appearance on behalf of others and does not affect person's right to appear and conduct his own case. *Gray v. Justice's Court of Williams Judicial Tp., Colusa County* (1937) 18 Cal. App. 2d 420. Persons may represent their own interests in legal proceedings, but may not represent the interests of another unless they are active members of the State Bar. *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal. App. 4th 1251. Non-attorney trustees cannot appear on behalf of a trust when there are other beneficiaries to the trust. *Ziegler v. Nickel* (1998) 64 Cal. App. 4th 545.

If there are other beneficiaries to the Borjon Family Trust DTD January 19, 2029, Defendants are unable to appear without counsel. If there are no other beneficiaries, the matter can proceed. Prior to proceeding with hearing on the motion, the Court intends to seek clarification from Defendants regarding whether there are any other beneficiaries to the trust. The Court will only proceed with the following tentative ruling if Defendants are able to proceed without counsel.

Request for Judicial Notice. Plaintiffs request the Court take judicial notice of four separate Grant Deeds provided at Exhibits 1-4. Defendants did not object. The request is granted pursuant to Evid. Code §§ 452(c) and 453.

Merits. A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

The Complaint alleges a single cause of action seeking partition by sale of the real property located at 42324 Blue Heron Circle in Old Station, California. The property is a single family home and Plaintiffs each own 1/3 undivided interest and Defendants own the remaining 1/3. Therefore, the parties collectively own 100% of the interest in the property. Ownership is as tenants in common. Civ. Code § 686. There is no dispute as to the interests of the parties. Plaintiffs have presented evidence that they are entitled to partition as there has been no valid waiver. Therefore, Plaintiffs have met their burden. Defendants failed to raise any triable issues of material fact.

“If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” CCP § 872.720. The Court notes that the property is a single family home, therefore, partition in kind is not practicable and the Court will order partition by sale. The Court further notes that The Partition of Real Property Act applies as this action was filed on July 16, 2025.

Plaintiffs’ Motion for Summary Judgment is **GRANTED**. The Court has reviewed the proposed Interlocutory Judgment and Order submitted by Plaintiffs and notes that there is significant extraneous information regarding the next steps. While this is helpful, it is not properly part of the Order at this juncture and the Court will modify the proposed Order. The Court vacates the June 16, 2026 trial date and will place this matter on calendar on **Monday, May 18, 2026 at 9:00 a.m. in Department 63** for status of determination of fair market value.

9:00 a.m. – Review Hearings

ABBEY, ET AL. VS. ROSEBURG FOREST PRODUCTS, CO

CASE NUMBER: 25CV-0208406

This matter is on calendar for review regarding status of expedited petitions. The Court notes that the expedited petition for minor Konstance Ripley was approved on April 14, 2026. The matter is continued to **Monday, June 29, 2026 at 9:00 a.m. in Department 63** for confirmation of deposit and status of dismissal. **No appearance is necessary on today’s calendar.**

BURROWS VS. GARRIGUS, ET AL.

CASE NUMBER: 24CV-0205757

This matter is on calendar for status of appraisal. Plaintiff has not submitted a motion or ex parte application to approve an appraiser. The Court notes that Plaintiff notice a Motion for Award of Attorney Fees and Costs for May 4, 2026. **An appearance is necessary on today’s calendar.**